

22STCV27216 22STCV27216

County: los-angeles

Division: Civil Law and Motion

Department: 316

Hearing date: 2026-07-21

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Case Number: 22STCV27216 Hearing Date: July 21, 2026 Dept: 316

BACKGROUND

On February 6, 2023, Plaintiff Melissa

Major filed her first amended complaint ("FAC") against Defendants Accentcare, Inc. and Accentcare UCLA Health, LLC alleging sixteen employment-related causes of action.

On February 10, 2026, the Court issued a

Minute Order granting Defendants' Motion for Summary Judgment. Accordingly, the Court entered judgement in Defendants' favor.

On March 17, 2026, Plaintiff filed a

Motion to Tax Costs ("Motion").

On July 8, 2026, Defendants filed an

opposition.

On July 14, 2026, Plaintiff filed a reply.

TENTATIVE RULING

Plaintiff's Motion to Tax

Costs is GRANTED in part. The total awarded costs are \$7,420.82.

LEGAL STANDARD

"Except as otherwise expressly provided by statute, a prevailing party is

entitled as a matter of right to recover costs in any action or proceeding.” (Code Civ. Proc., § 1032, subd. (b).) (Emphasis added.) Code

of Civil Procedure section 1032, subdivision (a) defines a “prevailing party” as “[1] the party with a net monetary recovery, [2] a defendant in whose favor dismissal is entered, [3] a defendant where neither plaintiff nor defendant obtains any relief, and [4] a defendant as against those plaintiffs who do not recover any relief against that defendant.” “[T]he trial court has no discretion to deny prevailing party status to a litigant who falls within one of the four statutory categories in the first [sentence] of the provision.” (Charton v. Harkey, supra, 247 Cal.App.4th at p. 738.)

Costs are allowable if

incurred, whether or not paid. (Code Civ. Proc., § 1033.5, subd. (c)(1).) Costs must also be “reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation” and must be reasonable in amount. (Code Civ. Proc., § 1033.5, subd. (c)(2)-(3).)

A prevailing party

claiming costs must file and serve a memorandum of costs either: (1) within 15 days after the date of service of a notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5; (2) 15 days after the service of written notice of entry of judgment or dismissal; or (3) within 180 days after entry of judgment, whichever is first. (See Cal. Rules of Court, rule 3.1700, subd. (a).)

“Any notice of motion to

strike or to tax costs must be served and filed 15 days after service of the cost memorandum.”

(Cal. Rules of Court, rule 3.1700, subd. (b)(1).) “If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that were not reasonable or necessary. On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs.”

(Ladas v. California State Automobile Ass’n (1993) 19 Cal.App.4th 761, 774.)

REQUEST FOR JUDICIAL
NOTICE

The parties request the Court take judicial notice of two exhibits: (1) the Court's January 4, 2024, Case Management Conference / ADR Order; and (2) a copy of the Joint Stipulation to Continue Trial and All Trial Related Deadlines signed by the Court on July 11, 2024. These exhibits are both records of this Court; therefore, they will be judicially noticed. (See Code Civ. Proc., § 452, subd. (d)(1).)

DISCUSSION

The Court will partially tax Defendants' claimed costs.

On February 10, 2026, the Court entered judgment in favor of Defendants. (See Feb. 10 Minute Order, p. 10.) Therefore, Defendants are the prevailing parties in this case. (See Code Civ. Proc., § 1032, subd. (a).) Accordingly, Defendants are entitled to recover incurred costs as set forth in Code of Civil Procedure section 1033.5. (See Code Civ. Proc., § 1032, subd. (b); *Charton v. Harkey*, supra, 247 Cal.App.4th at p. 738.)

Plaintiff now seeks to tax certain costs alleged to have been incurred by Defendants. The Court rules on these costs as follows:

Ø \$28.20 for Copies of Court & Opposition Papers – TAXED

o

Even

if the photocopies were copies of original court records, they are nonetheless photocopies. Therefore, they are not recoverable under Code Civil Procedure section 1033.5, subdivision (b)(3).

Ø \$1891.22 for Mediation Fee – TAXED

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The Court

finds that it did not order the parties to engage in mediation and will not award mediation fees as costs. The January 4, 2024 Minute Order stated that the

parties were ordered to meet and confer to discuss potential settlement of the action, but it did not order the parties to private mediation. The Court recognizes the wording of the parties' stipulation but that stipulation does not transform the Court's direction to discuss mediation into an order to conduct third-party mediation. The Court does not find that this cost is recoverable under Code of Civil Procedure section 1033.5.

Ø \$350 Late Cancellation Charge regarding Plaintiff's
Deposition – NOT TAXED

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Cost

was reasonably incurred because it was Plaintiff who untimely cancelled the originally scheduled deposition on March 14, 2024, thus causing the late cancellation fee. (See Torossian Decl., Exh. F.)

Ø \$2530.63 for Electronic Filing and Service
Fees – TAXED/REMOVED

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This

charge was included twice, which is not disputed by Defendants. Defendants may only recover the cost once though removing this cost does not impact the total amount sought in the memorandum of costs as the charge was only counted the once in the total costs.

Ø Filing Fees and Service-Related Charges –
TAXED

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Most

of Defendants' claimed charges and fees are supported with sufficient documentation. (See Torossian Decl., Exhs. H, I.) However, there is still an unaccounted for \$363.35 in the filing of Defendants' MSJ. (See id. at. Exh. I.) Therefore, the Court will tax this unaccounted for \$363.35.

In sum, the costs that shall be taxed are \$28.20 for Copies of Court & Opposition Papers, \$1,891.22 for mediation fees and the unaccounted for \$363.35 regarding the filing of Defendants' MSJ. The \$2530.63 listed for both Filing and Motion Fee and for

Electronic Filing and Service Fees will be allowed once. The total awarded costs are therefore \$7,420.82.

CONCLUSION

For the foregoing reasons,

Plaintiff's Motion to Tax Costs is GRANTED in part. Costs are taxed as stated above and the total awarded costs are \$7,420.82.